“base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiff has sufficiently stated a cause of action sounding in fraud, which supports imposition of punitive damages. (Civ. Code, § 3294, subd. (a) [fraud as basis for punitive damages].) This is so even where he simultaneously alleges lemon law violations. (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946 [permitting punitive damages on fraudulent inducement claim alongside civil penalties on Song-Beverly claim].)

Conclusion. Defendants’ demurrer is overruled. Defendants’ motion to strike is denied.

VIDA LARA; ET AL. vs. WINNRESIDENTIAL CALIFORNIA L.P.; ET AL.
Case No. CU25-06641

Plaintiff VIDA LARA’s Motion to Compel Further Responses to Special Interrogatory No. 1 Propounded on Defendants WINNRESIDENTIAL L.P. and LLAM REALTY MANAGEMENTINC.

<u>TENTATIVE RULING</u>

THE PARTIES ARE TO APPEAR.

LONDON ROBINSON vs. HARBINGER PRODUCTIONS, INC.
Case No. CU25-11852

Defendant’s Motion to be Relieved as Counsel

<u>TENTATIVE RULING</u>

The unopposed motion to withdraw by Defense Counsel for Defendant HARBINGER PRODUCTIONS, INC., is granted.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff’s Motion to Conduct Discovery of MEYER’s Financial Condition

<u>TENTATIVE RULING</u>

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

The court received supplemental briefing from Plaintiff and from MEYER as authorized at the July 10, 2026 hearing.

The Court has also considered the arguments of counsel regarding the admissibility of Plaintiff's deposition testimony in light of CCP Section 2025.620.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or contemptible" and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code, § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid*.) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital*, *supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid*.) A plaintiff need not necessarily establish that any particular committee or officer of the corporation acted on a particular date with malice, though; it is enough if the evidence permits a clear and convincing inference that authorized persons within the corporate hierarchy acted despicably. (*Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1140 (*Romo*), disapproved on other grounds in *People v. Ault* (2004) 33 Cal.4th 1250, 1272 at fn. 15.) That is, a plaintiff may satisfy the "managing agent" requirement in the corporate context through evidence, even circumstantial evidence, showing information in the possession of the corporation and the structure of management decision-making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated. (*Id*. at p. 1141.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion.

<u>MEYER's #1-2, 17.</u> Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

<u>MEYER's #13, 29-32.</u> What Plaintiff told Ms. Luciano is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

<u>MEYER's #14, 42, 44, 46.</u> What Plaintiff told Ms. Calisa is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

<u>MEYER's Supplemental #7.</u> What Ms. Jarrett told Plaintiff is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. This objection is sustained.

<u>MEYER's Supplemental #1,2,3.</u> Defendant's objections pursuant to CCP Section 2025.620, Civil Code Section 3295, and CCP Section 2015.5 are overruled. Unlike CCP Section 2030.410, there is no express prohibition related to CCP Section 2025.620 prohibiting the use of deposition testimony by the responding party. The court finds that the requirement of "appropriate affidavits" under CCP Section 3295 is sufficiently satisfied by use of sworn deposition testimony.

Likelihood of Proving Punitive Damages Against MEYER. Plaintiff's supplemental declaration of counsel filed July 14, 2026 introduces into evidence Plaintiff's deposition, wherein she testifies that PEREZ made statements including and not limited to the following during the course of her employment with MEYER: "men are always right," "men are the head of the household," "men make the rules." This evidence of repeated harassing statements demonstrates a substantial likelihood that it can be proven at trial that PEREZ engaged in malicious and/or oppressive harassment of Plaintiff based on her sex and/or gender, in turn supporting potentially supporting imposition of punitive damages against PEREZ.

The court recognizes MEYER's argument in supplemental opposition that the standard has not been met. MEYER characterizes PEREZ's comments as isolated incidents. However, a pattern is necessarily formed of incidents with common features. Plaintiff's evidence of PEREZ's harassing comments is substantially likely to support a finding of a pattern of harassment.

Plaintiff's evidence also demonstrates a likelihood of proving at trial that MEYER ratified PEREZ's harassing conduct and so is potentially liable for punitive damages. Plaintiff notified MEYER of PEREZ's aggressive conduct in a March 4, 2021 email to MEYER's Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER's president, Bledsoe admitted and conveyed to Banning awareness that PEREZ's aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ's aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ's pay twice, providing evidence of approval of PEREZ's conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ's actions against Plaintiff.

MEYER's argument in opposition speaks to a lack of evidence that MEYER failed to perform any promised investigation of PEREZ and does not address the identified evidence substantially likely to support a finding of ratification.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

THE PARTIES ARE TO APPEAR to address deadlines for the above financial discovery.

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